

BEFORE THE BOARD OF PSYCHOLOGY EXAMINERS
OF THE STATE OF IOWA

IN THE MATTER OF	)	DIA NO. 91DPHPS-2
THE LICENSE TO PRACTICE	)	
AS A PSYCHOLOGIST OF:	)	FINDINGS OF FACT
	)	CONCLUSIONS OF LAW
WILLIAM MCMORDIE,	)	DECISION AND ORDER
Respondent.	)	

On August 5, 1991, Carl Davis, Ph.D., Chairperson of the Iowa Board of Psychology Examiners, filed a Notice of Hearing and Statement of Charges against the Respondent, Dr. William McMordie. On September 5, 1991, Respondent filed a Response to Notice of Hearing and Statement of Charges and a Request for Production of Documents of Unprivileged Material. The hearing was continued to December 5 and 6, 1991, but was later rescheduled to December 6 and 7, 1991.

The hearing was held on December 6, 1991 in the fourth floor conference room, Wallace State Office Building, Des Moines, Iowa. The following members of the Board were present for the hearing: Carl Davis, Psychologist and Chairperson; Rick L. Jennings, Psychologist; Janet McDonough, Psychologist; Dan Rogers, Psychologist; and Joan Egenes, public member. Kathryn Gerken, Psychologist, was the investigating board member and did not participate in this decision. Lynnette Donner, Assistant Attorney General, appeared for the State. The Respondent, William McMordie, appeared and was represented by his counsel, Charles A. Coppola. The Board Administrator and a court reporter were also present. Margaret LaMarche, Administrative Law Judge from the Iowa Department of Inspections and Appeals, presided. The hearing was closed to the public, pursuant to Iowa Code section 258A.6(1). On December 7, 1991 the Board met in closed executive session, pursuant to Iowa Code section 21.5(1)"f" to deliberate its decision. The Administrative Law Judge was directed to prepare the Board's Order in conformance with their deliberations.

THE RECORD

The record includes the Notice of Hearing and Statement of Charges; Response to Notice of Hearing; Request for Production of Documents of Unprivileged Material; Order for Continuance; Order Rescheduling Hearing; the testimony of the witnesses; and the following exhibits:

- State's Exhibit 1: Complaint form signed by L.W. (cousin of Complainant)
- State's Exhibit 2: Complaint form signed by L.W. (grandmother of Complainant)

State's Exhibit 3: Complaint form signed by D.C.
State's Exhibit 4: Complaint form signed by D.B.

Respondent's Exhibit A: Deposition of L.W. (grandmother)
Respondent's Exhibit B: Deposition of L.W. (cousin)
Respondent's Exhibit C: Deposition of D.C.
Respondent's Exhibit D: Deposition of D.B.
Respondent's Exhibit E: Curriculum Vitae of Respondent

FINDINGS OF FACT

1. Respondent was originally licensed to practice as a psychologist in the State of Iowa on September 24, 1985, and holds license number 327, which is current until June 30, 1992. (Official File)
2. Respondent had a long term professional relationship with the complainant, D.B., who was participating in an intensive treatment program. The Respondent and D.B. had an effective therapeutic relationship until August 15, 1990. (Testimonies of D.C.; D.B.; Respondent)
3. On August 15, 1990 Respondent touched D.B.'s ankle with his foot, in an attempt to determine if there was any unusual sensation in her leg. Respondent was responding to statements from D.B. that she had experienced tingling in that leg. (Testimonies of D.B.; Respondent; Dr. Catherine Evans)
4. Respondent was wearing "ducks", a type of soft shoe, when he touched D.B.'s ankle. It is possible that "ducks" would have the appearance and feel of a sock. (Testimonies of Respondent; D.B.; L.W. [cousin])
5. By touching D.B.'s ankle, Respondent's intent was to gather information and not to commit any sexual overture. This was confirmed by D.B.'s unsolicited statements to Dr. Evans that the touching was not sexual and that she had complained to Respondent about her leg. (Testimonies of Respondent; D.B.; Dr. Catherine Evans)
6. D.B. had experienced a traumatic disabling head injury which affects her memory and her suggestibility. D.B. also suffered a severe fracture of her right leg, which had required the placement of a rod with pins in her hip and thigh area. The Board gave careful weight to the testimony of D.B.; which was credible and consistent with the testimony of her cousin, Dr. Evans, and Respondent. There were gross inconsistencies in the prior statements of D.B., L.W. (her cousin), D.C. and L.W. (D.B.'s grandmother). Given the gross inconsistencies of those prior statements, the Board chooses to rely on the testimony at the hearing in making its Findings of Fact. (Testimonies of Respondent, D.B., D.C., L.W., L.W., and Dr. Evans; State's Exhibits 1-4; Respondent's Exhibits 1-4).

CONCLUSIONS OF LAW

The Respondent has been charged with violating Iowa Code sections 147.55(3), 258A.10(3), and 645 IAC sections 240.212(1)"c", 240.212(6), 240.212(7)"f", 240.212(14)"a"(5) and 240.212(14)"f"(1) for contact with a client that was allegedly sexually suggestive and inappropriate.

The preponderance of the evidence presented by the State does not establish that Respondent's touching of D.B.'s ankle with his foot was either sexual suggestive or inappropriate. The evidence establishes that the contact was not sexual in nature. The Respondent did not violate the Iowa Code and Iowa Administrative Code sections cited in the Complaint.

ORDER

It is the ORDER of the Iowa Board of Psychology Examiners that the Notice of Hearing and Statement of Charges, filed against the Respondent, Dr. William McMordie, on August 5, 1991, is DISMISSED.

Dated this 22nd day of January, 1992.



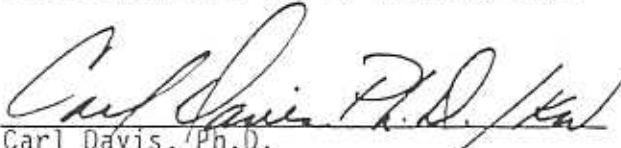
Carl Davis Ph.D.
Chairperson of the Board

BEFORE THE BORAD OF PSYCHOLOGY EXAMINERS

In the Matter of the License to		
Practice as a Psychologist of	*	DIA No. DPHPS-2
William McMordie	*	ORDER
License # 327	*	

The hearing for the above case which was continued on October 7, 1991 is hereby scheduled for December 5, 1991 at the Wallace Building, first floor conference room west, and December 6, 1991 at the Wallace Building, fourth floor conference room, Des Moines, Iowa.

Dated this 23rd day of October, 1991.


Carl Davis, Ph.D.
Chairperson
Iowa Board of Psychology Examiners

Copy to:

William McMordie CERTIFIED
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Kathy Williams
Board of Psychology Examiners

Department of Inspections and Appeals

BEFORE THE IOWA
BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF
THE LICENSE TO PRACTICE AS
A PSYCHOLOGIST OF:

WILLIAM McMORDIE,
Lic. No. 327,
Respondent.

DIA NO. 91DPHPS-2

NOTICE OF HEARING AND
STATEMENT OF CHARGES

TO THE ABOVE-NAMED RESPONDENT:

Pursuant to Iowa Code § 17A.12 and 645 Iowa Administrative Code 240.206, and upon a probable cause determination by the Iowa Board of Psychology Examiners (the Board), you are hereby notified that a Statement of Charges has been filed and that a disciplinary hearing regarding those charges has been scheduled at 11:00 a.m., October 18, 1991, in the First Floor Hearing Room of the Lucas State Office Building, Des Moines, Iowa. At that time you may appear and defend. If you fail to appear and defend, Iowa Code § 17A.12(3) provides that the hearing may proceed and a decision rendered. You have the right to be represented by legal counsel at your own expense, present evidence on your behalf, and to examine and cross-examine witnesses. The authority for the hearing is Iowa Code §§ 258A.3 and 258A.6 and Board rules 240.201 through 240.212.

The hearing will concern whether or not disciplinary action should be taken concerning your license to practice as a psychologist based upon the following allegations:

1. Respondent was originally licensed to practice as a psychologist in the state of Iowa on September 24, 1985, and holds license number 327.

2. Respondent's license is current until June 30, 1992.

3. Respondent's current address as reported to the Board is 1204 Stephan Court, Indianola, Iowa 50125.

4. During 1990, Respondent administered care, including memory therapy, to a female patient D.B. at the Iowa Methodist Medical Center - Life Quality Center, Des Moines, Iowa.

5. On or about August 15, 1990, during a therapy class, Respondent rubbed D.B.'s leg and thigh repeatedly with his socked foot.

6. In the context of the therapy, this contact by Respondent was sexually suggestive and was inappropriate.

7. Iowa Code §§ 147.55(3) and 258A.10(3) provide the Board with jurisdiction to take disciplinary action against a licensee for "engaging in unethical conduct or practice harmful or detrimental to the public. Proof of actual injury need not be established."

8. 645 Iowa Admin. Code § 240.212 provides further jurisdiction to the Board to take disciplinary action for enumerated reasons, including:

a. 645 Iowa Admin. Code § 240.212(1)(c). "[E]ngaging in unethical conduct or practice harmful or detrimental to the public. Proof of actual injury need not be established."

b. 645 Iowa Admin. Code § 240.212(5). "[A]ny conduct,

practice or conditions which impair the ability to safely and skillfully practice the profession."

c. 645 Iowa Admin. Code § 240.212(7)(f). "Any sexual intimidation . . . between a psychologist and a client."

d. 645 Iowa Admin. Code § 240.212(14). "Failure to comply with the . . . rules of ethical conduct and practice." Those rules provide in part:

(1) 645 Iowa Admin. Code § 240.212(14)(a)(5). "As practitioners, psychologists know that they bear a heavy social responsibility because their recommendations and professional actions may alter the lives of others. They are alert to personal, social, organizational, financial, or political situations or pressures that might lead to misuse of their influence."

(2) 645 Iowa Admin. Code § 240.212(14)(f)(1).
"Psychologists are continually cognizant of their own needs and of their inherently powerful position vis a vis clients, in order to avoid exploiting their trust and dependency. Psychologists make every effort to avoid dual relationships with clients or relationships which might impair their professional judgment or increase the risk of client exploitation . . ."

* * *

You are also hereby notified that the hearing will be presided over by the Board which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

Further, you are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all filings with the Board should be served on counsel at the following address: Lynette A. F. Donner, Assistant Attorney General, Hoover State Office Building, Des Moines, Iowa 50319. Ms. Donner's telephone number is: 515/281-8760.

Dated this 5th day of August, 1991.



Carl Davis, Ph.D.
Chairperson
Iowa Board of Psychology Examiners